

Navinkumar Jagdishkumar Kingrani And ... vs The State Of Maharashtra And Another on 30 March, 2022

Author: V.K. Jadhav

Bench: V.K. Jadhav

(1)

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IN THE HIGH COURT OF JUDICATURE OF BOMBAY
BENCH AT AURANGABAD

977 CRIMINAL APPLICATION NO.226 OF 2022

1.	Navinkumar Jagdishkumar Kingrani	
2.	Jagdishkumar Gurudasmal Kingrani	
3.	Anuj w/o Jagdishkumar Kingrani	
4.	Muskan d/o Jagdishkumar Kingrani	
5.	Sharda Sunil Madhwani	Applicants
	Versus	
1.	The State of Maharashtra	
2.	Sonam @ Soni w/o Navinkumar Kingrani @ Sonam Tarachand Mandhan	Respondents

...

Mr. D.A. Madake, Advocate for the applicants.
Mr. S.J. Salgare, A.P.P. for respondent No. 1.
Mr. R.R. Deshmukh, Advocate for respondent No.2.

...

CORAM : V.K. JADHAV AND
SANDIPKUMAR C. MORE, JJ.

DATE : 30-03-2022.

P.C. :

1. Heard fnalll with consent at the admission stage.
2. The applicants / original accused are seeking quashing of F.I.R. bearing Crime No. 442/2020 registered with Zilla Peth Police Station, Taluka and District Jalgaon for

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the offences punishable under Sections 498-A, 406, 323, 504 read with Section 34 of the Indian Penal Code and consequential charge-sheet bearing R.C.C. No. 87 of 2021 pending before the learned Chief Judicial Magistrate, Jalgaon, on the ground that the parties have arrived at amicable settlement.

3. Learned Counsel for the applicants and learned Counsel for respondent No. 2 submit that the parties have arrived at amicable settlement and they have decided to get separated permanently. Applicant No.1 - husband and respondent No. 2 - wife have filed Petition F. No. 246/2021 before the Family Court, Jalgaon for decree of divorce on mutual consent in terms of the provisions of Section 13-B of the Hindu Marriage Act and the learned Judge of the Family Court, Jalgaon vide judgment and order dated 07.03.2022 has passed decree of divorce. Learned Counsel submit that respondent No.2 also filed affidavit-in-reply to that effect and settlement terms are annexed to the affidavit.

Learned

Counsel for respondent No.2 submits that it was agreed between the parties that applicant No.1 will return all the golden ornaments and all the personal belongings of respondent No. 2 as a full and final alimony.

Learned

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Counsel submits that respondent No. 2 has received all the articles including golden ornaments in terms of the said settlement. Learned Counsel for respondent No.2 submits that respondent No. 2 is no more interested in prosecuting the present crime. She has already withdrawn proceedings under Section 125 of the Code of Criminal Procedure bearing Criminal Misc. Application No. E-29/2021 and also the proceedings under Hindu Adoption and Maintenance Act bearing No. C-4/2021.

4. We have also heard learned A.P.P. for the respondent - State.

5. It appears that the parties have arrived at amicable settlement. Applicant No.1 - husband has returned all the golden ornaments and other articles towards permanent alimony of respondent No. 2. It further appears that respondent No.2 has withdrawn all the proceedings initiated against applicant No. 1 and his family members. Applicant No.1 and respondent No.2 have also obtained decree of divorce on mutual consent in terms of Section 13-B of the Hindu Marriage Act.

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6. In the case of Gian Singh vs. State of Punjab and others, reported in (2012) 10 SCC 303, the Supreme Court in para 48 has quoted para 21 of the judgment of the five-Judge Bench of the Punjab and Hariana High Court delivered in Kulwinder Singh v. State of Punjab (2007) 4 CTC 769 . The five-Judge Bench of the Punjab and Hariana High Court, in para 21 of the judgment, has framed the guidelines for quashing of the criminal proceeding on the ground of settlement. Para 21 of the said case of Kulwinder Singh is reproduced by the Supreme Court in para 48 of the judgment in Gian Singh. Clause 21(a) which is relevant for the present discussion reads as under :

"21. (a) Cases arising from matrimonial discord, even if other offences are introduced for aggravation of the case."

7. In para No.61 of the case Gian Singh (supra), the Hon'ble Supreme Court has made the following observations:-

"61. The position that emerges from the above discussion can be summarised thus:
the power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320

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of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the guideline engrafted in such power viz. : (1) to secure the ends of justice,

or (ii) to prevent abuse of the process of anl court.
In what cases power to quash the criminal proceeding or complaint or FIR mal be exercised where the offender and the victim have settled their dispute would depend on the facts and circumstances of each case and no categorl can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravitl of the crime. Heinous and serious offences of mental depravitl or offences like murder, rape, dacoitl, etc. cannot be fittingll quashed even though the victim or victim's famill and the offender have settled the dispute. Such offences are not private in nature and have a serious impact on societl. Similarll, anl compromise between the victim and the offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences committed bl public servants while working in that capacitl, etc; cannot provide for anl basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingll and predominatingll civil favour stand on a different footing for the purposes of quashing, particularll the offences arising from commercial, fnancial, mercantile, civil,

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partnership or such like transactions or the offences arising out of matrimonl relating to dowrl, etc. or the famill disputes where the wrong is basicalll private or personal in nature and the parties have resolved their entire dispute. In this categorl of cases, High Court mal quash criminal proceedings if in its view, because of the compromise between the offender and the victim, the possibilitl of conviction is remote and bleak and continuation of the criminal case would put the accused to great oppression and prejudice and extreme injustice would be caused to him bl not quashing the criminal case despite full and complete settlement and compromise with the victim. In other words, the High Court must consider whether it would be unfair or contrarl to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between

the victim and the wrongdoer and whether to secure the ends of justice, it is appropriate that the criminal case is put to an end and if the answer to the above question(s) is in the affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding."

8. In view of the above and in terms of the ratio laid down by the Supreme Court in the above-cited case, we proceed to pass the following order.

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ORDER

(i) Criminal Application is hereby allowed in terms of praler clause [A].

(ii) Criminal Application is accordingly disposed of.

(SANDIPKUMAR C. MORE, J.) (V.K. JADHAV, J.) VD_Dhirde